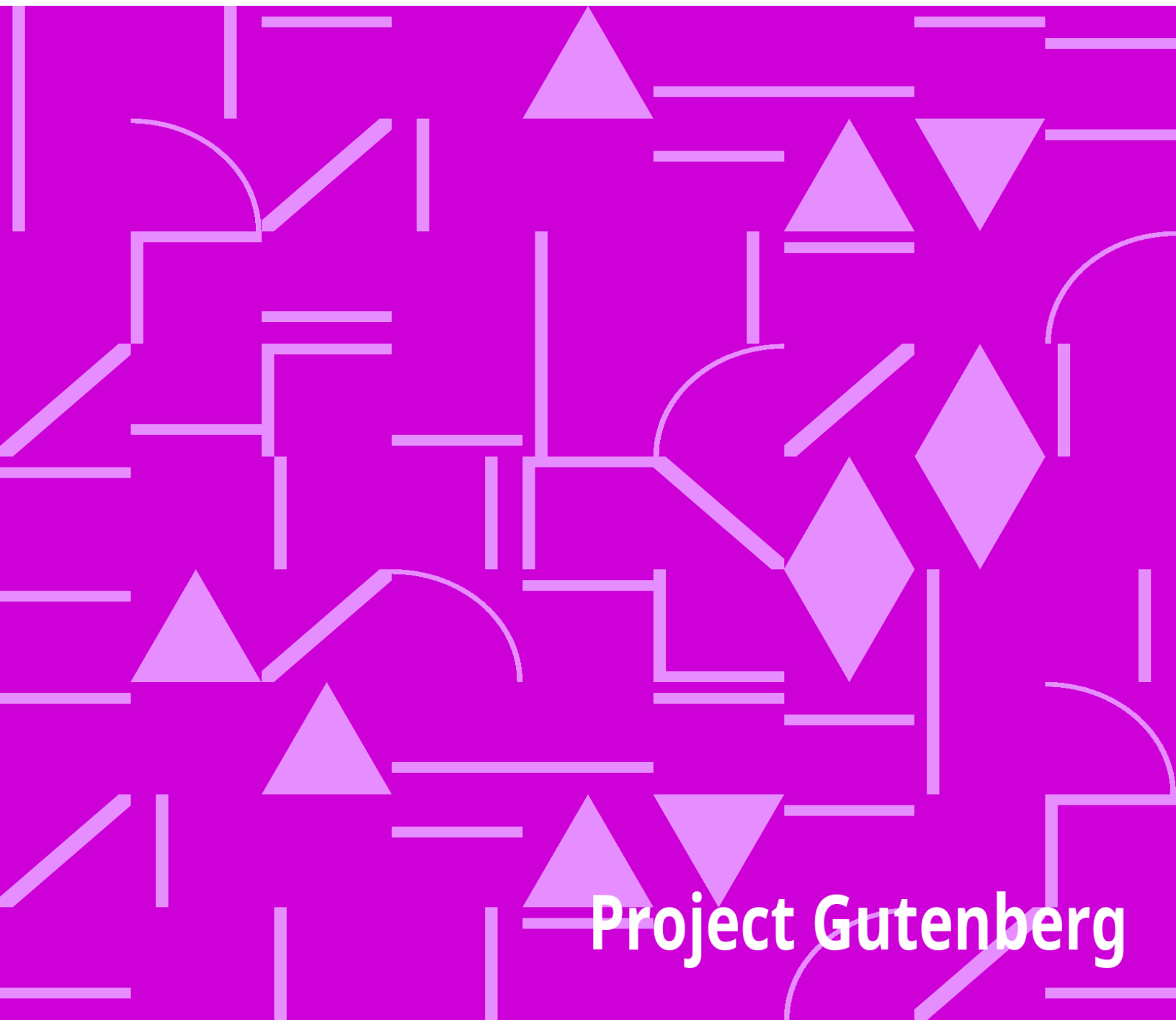


The Affecting Case of the Unfortunate Thomas Daniels

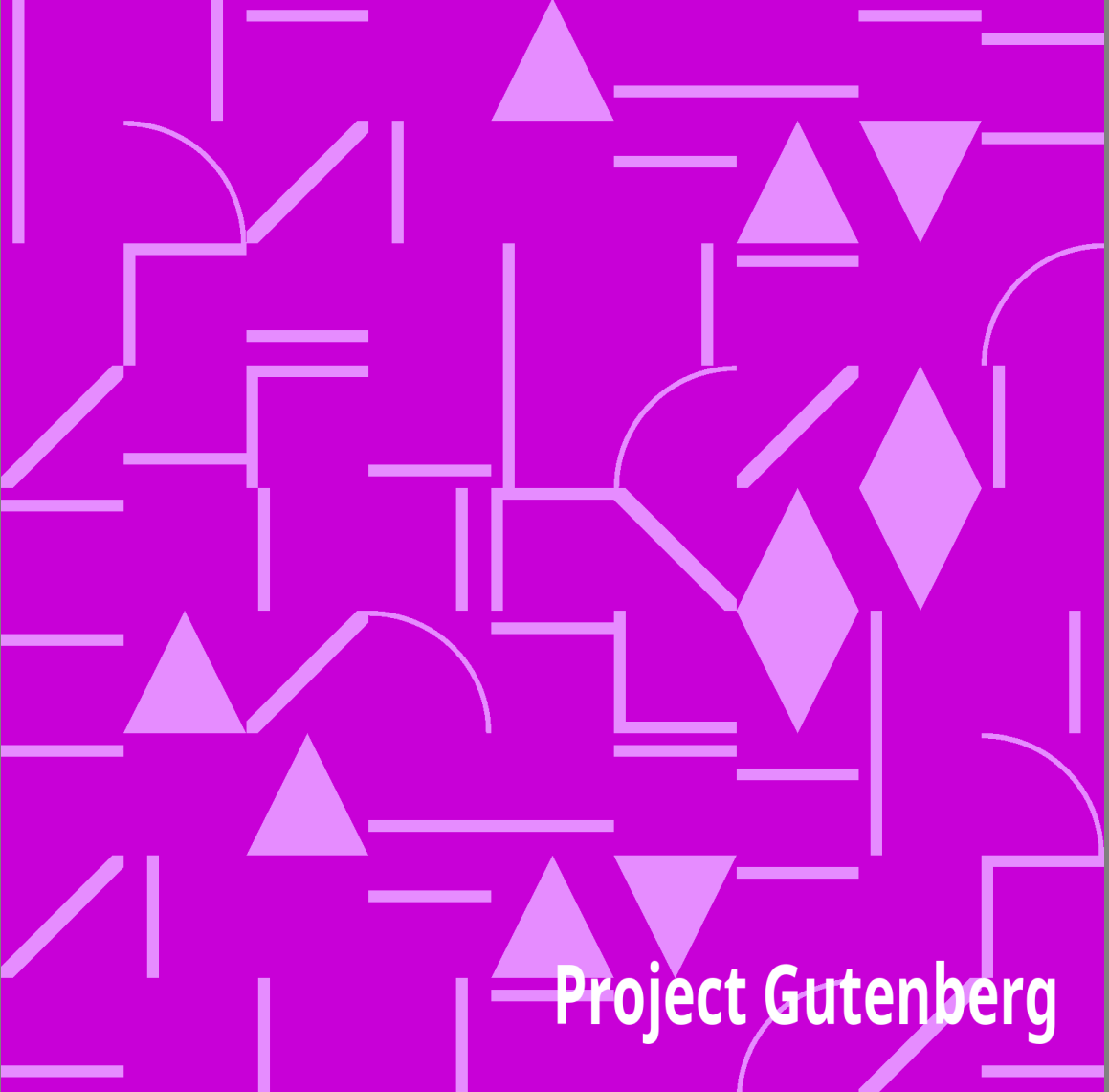
Thomas Daniels

An abstract geometric pattern in shades of purple and magenta, featuring various shapes like triangles, diamonds, and lines, creating a complex, layered visual effect.

Project Gutenberg

The Affecting Case of the Unfortunate Thomas Daniels

Thomas Daniels

A decorative pattern of various geometric shapes, including triangles, squares, and diamonds, in shades of purple and magenta, arranged in a complex, overlapping design.

Project Gutenberg

The Project Gutenberg eBook of The Affecting Case of the Unfortunate Thomas Daniels

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Affecting Case of the Unfortunate Thomas Daniels

Author: Thomas Daniels

Release date: September 7, 2010 [eBook #33661]

Language: English

Other information and formats: www.gutenberg.org/ebooks/33661

Credits: Produced by The Online Distributed Proofreading Team at <http://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/American Libraries.)

*** START OF THE PROJECT GUTENBERG EBOOK THE
AFFECTING CASE OF THE UNFORTUNATE THOMAS DANIELS ***

**THE AFFECTING CASE OF THE
UNFORTUNATE *THOMAS*
*DANIELS.***

LONDON

Thomas Daniels, the person named in the Pamphlet hereunto annexed, Intitled, "*The Affecting Case of the unfortunate Thomas Daniels &c.*" maketh Oath and saith that the said Pamphlet (containing twenty-four pages) is a just and faithful Narrative of his Case; and that the same is published at his particular desire of having the Public truly informed of the whole and every circumstance of his case, with a view to the removing all unfavourable prejudices against him.

THOMAS DANIELLS.

Sworn this 23d of *November*,
1761, before me
W. ALEXANDER.

**THE
AFFECTING CASE
OF THE UNFORTUNATE
THOMAS DANIELS,
WHO WAS
Tried at the SESSIONS held at the OLD BAILEY,
September, 1761,
FOR THE
Supposed MURDER of his WIFE;
By casting her out of a CHAMBER WINDOW:
And for which he was sentenced to die, but received his MAJESTY'S
most GRACIOUS and FREE PARDON.**

**IN WHICH IS CONTAINED,
A circumstantial Account of the Behaviour of that unhappy Woman,**

**from her Husband's first Acquaintance with her, to the Day of her
Death.**

**Drawn up and authenticated by the said DANIELS himself;
And faithfully prepared for the PRESS, by
An IMPARTIAL HAND.**

**LONDON:
Printed for E. CABE, in *Ave-Mary-Lane*.
MDCCLXI.**

THE AFFECTING CASE OF THE UNFORTUNATE *THOMAS DANIELS*.

The calamitous circumstance of having been condemned to death by the laws of his country, for the most hateful of all crimes; and his most extraordinary deliverance from an ignominious fate, and being restored to liberty unconditionally and free! will naturally render the case of *Thomas Daniels* a subject of eager curiosity and warm debate. That persons in the superior stations of life should sometimes find means to evade the punishments incurred by infringing the laws of their country, and by disturbing the order of society, does not greatly excite our wonder; an experience of the manners and customs of the world, occasions our hearing such instances as things of course; we make a natural reflection or two on the occasions, and think no more of them. But when a person in one of the lowest classes of mankind, by a fatal accident, appears before a court of justice with apparent evidences of guilt, sufficient to influence a jury of his impartial countrymen to sentence him to the most severe penalty the law can inflict; when this man, meerly from the advantage of a good character in the narrow circle of his acquaintance, and from a re-examination into the probability of the fact, for which he was condemned, shall have the inferences drawn from the depositions on his trial, totally invalidated, so that the sentence passed on him is freely remitted! it is *such a sanction* of his innocence, that it would be cruel and unjust, in particulars, afterward to retain any suspicions injurious to him.

It ought to be principally attended to in this affair, that his Majesty, whose regal virtues are so generally known and acknowledged, cannot appear in a more amiable view, than in the attention with which he is said to have endeavoured to discover the merits of the intercession made for this poor convict. An instance which, as it may be deemed too trivial to engage any particular share of princely consideration, yet is certainly one of the truly parental duties of a Monarch, and will endear him in the hearts of many of his useful subjects, who are beneath caring for the retention of *Guadalupe* or *Canada*. And it is doing justice to the poor fellow, to own, that he seems

to retain a grateful, if not a politely expressed, sensibility of the great obligation he owes to the royal parent of this his second period of existence.

But as an imputation of so base a nature, confirmed by a court of justice, would naturally prejudice female minds universally against him, too strongly for any after testimony in his favour easily to efface; and as Mr. *Daniels* is not yet old enough to relinquish all thoughts of matrimony, and seems to possess too happy a share of vivacity to be totally depressed by his past misfortunes, however severe they have been; it is probable he may be hardy enough yet to venture on a second trial of that state, can he find any good girl candid enough *to venture on him*: but however this may be, from many important considerations the poor man is willing to give the world all the satisfaction in his power, relating to the unhappy woman who was lately his wife, and on whose account he has gone through so much trouble and anxiety from his first connexion with her: and it is charitably hoped, that, as he has so solemnly authenticated the particulars of it, the same degree of credibility will be allowed *him*, which would be granted to any other person of fair character and good estimation.

The following particulars concerning this unfortunate couple, were penned by *Thomas Daniels* himself, since his enlargement; and are faithfully exhibited with no other alterations than what were absolutely necessary, with regard to spelling, style, and disposition, to render the narrative in some measure clear and fit for perusal. This dressing was not intended to give any undue colouring to facts, but simply to supply the deficiencies of the writer; whose laborious situation in life has denied him those literary advantages indispensable to the writing his story with tolerable propriety.

Thus much being premised, it is time to let the principal offer his plea, as candidate for the favourable opinion of his readers.

"It was in the year 1757 that I first became acquainted with *Sarah Carridine*, by living in the same neighbourhood. She was a very pretty girl; and I had a great affection for her, as I imagined her to be a good industrious person. I made my friends acquainted with my regard for her, but they were entirely against my having her, because of her living in a public-house: but I was obstinate, and told them I loved her and would marry her at all adventures, as I believed she would make a good wife: upon

this they said I might have another far preferable to her, but that if I was resolved not to listen to their advice, they would have nothing more to say to me, and I should never come near them more. Finding therefore it was in vain to hope for my father's consent in this affair, I consulted with her what to do, and at her desire I agreed that she should take a lodging for us both, and her mother took one accordingly. I then left my former lodging and lived with her; but as I still worked with my father as before, he soon found that I had changed my lodging, and upon what account. This discovery made him very angry, and we had a quarrel about it, which made me resolve not to work with him any more. This laid me under a necessity of seeking for business elsewhere; and in my walks for this purpose, I met with some acquaintance, who told me they had entered on board the *Britannia* privateer, and that she was a fine ship. By their encouragement I entered myself also. I went home, and told *Sarah Carridine* what I had done; she cried sadly, but I begged her to make herself easy, for that the cruize was but for six months, that we were going to make our fortunes, and that I would marry her when I came back; and in the mean time would advise her to go to service. This pacified her, and she promised so to do.

"We sailed on the 30th of *August*, on our cruize, but had very bad luck, and I returned home in *April*, 1758. As soon as I came to *London*, I went to my master, Mr. *Archer*, who keeps the sign of the *White Bear*, the corner of *Barbican* in *Aldersgate Street*; there I sent for my father and mother, and we spent the evening together very agreeably, much rejoiced at our meeting again. I enquired of my mistress where I could find *Sarah Carridine*? She referred me to Mr. *John Jones* the founder, who she said could inform me. *Jones* took me over the water to an alehouse at the bridge foot, where I saw her. I used in the evenings to go and sup with her, at her mother's, after my day's work; and Mr. *Jones*, lodging in the same house with me, frequently went with me. *Jones* and I had been old acquaintance for some years; he pretended great friendship for me and *Sarah Carridine*, and offered to be father to her and give her away. This was very agreeable to me, and I fixed upon *St. James's* day for our marriage. I informed my friends of my intention, but I could not obtain their consent. I asked my master to lend me a guinea to defray the wedding charges; but being refused, *Jones* advised me not to be beholden to any of them, but to raise some money upon my

watch: I therefore put it in his hands, and he pawned it for me. This will serve to shew how officious he was in this transaction.

"We lived for some time after our marriage in ready-furnished lodgings, until my wife's mother persuaded us to come and lodge with her; she lived in *Catharine-Wheel Alley, Whitechapel*. This we did until I procured some goods of my own. While we lived there, she used to be frequently abroad when I came home from my work. I cannot but take notice in this place, that, however wrong it may be esteemed by others, and however disagreeable to me, to speak ill of the dead; yet the peculiarity of my situation will, I hope, excuse the obligation I am under of declaring the truth, this being now the discharge of a duty I owe to myself. Whenever I asked her mother where she was gone? she would tell me she was gone to see some young women in *Spital Fields*. When she came home she was often in liquor, and I would then say, 'Sally, what makes you drink so much?' her mother would reply, 'Lord, a little matter gets in her head, for she is a poor drinker.' I then resolved to take a little shop to employ her: I did so, and put her in a little shop in the *Minories*, to sell pork, greens, and other articles; and she might have done very well there if she had minded her business, and not have gone to see the young women so often as she pretended. At last however I went to see where these young women lived, but they had not seen her a long time. As I was returning back, I saw my wife with Mr. *Jones*, going before me, whom I followed until I saw they turned into a public-house. On this I went back to her mother, and enquired whether she was returned? she replied, 'Lord, I suppose they will not let her come yet.' With that I said, it is very odd, but I believe I know where she is; I will go and see. When I went back there they were both together. So, said I, this is your going to see *Bett Reed*! She replied, I am but just come back. Pray, said I, how came Mr. *Jones* here? She answered, she found him there, and believed he came to see me. I then said, I rather believe he came to see you; I saw you both come in, arm in arm. She was then drunk, which made me send her home. I told him he had no business to keep my wife from me; but if he was a man he would come out, and try who had the best right to her. He would not, but went away.

"When I came home, my wife and her mother and I, quarrelled, and I had them both upon me at once: she then ran away, and staid all night. The next day by her mother's persuasions we made it up, and agreed that she should

go and mind her shop, and never go into *Jones's* company more. After this he did not come near us until the next Lord Mayor's Day, when he knew, I suppose, that I was gone to my master's hall. My shopmate and I went to carry my master's great coat; my master gave us a bottle of wine, and we went into the kitchen and got some victuals to it; this we carried home to my wife, thinking to enjoy it quietly there. I asked her mother where *Sally* was? She said she was gone to the *Three Kings*, and bid me go and call her. Before I went I heard a noise upon the stairs, and, upon taking a candle to see what was the matter, there stood my wife; and hearing somebody going down to the cellar, there stood *John Jones*!

"My wife and I had a great quarrel on this occasion; she pretended that he came only to give her some ribbons, as he had been a whiffler in the procession. Perceiving what a loose disposition she was of, I resolved she should keep shop no more; I therefore shut it up. There are people enough in that neighbourhood sufficiently acquainted with these transactions; and with my wife's general behaviour.

"I then thought we should be rather more quiet if I moved her from her mother's, for we were always quarrelling. I got some goods of my own, and my wife and my mother took a room for me in the *Little Minories*, when for some time we lived more loving than before. However she quickly began her old irregularities again, which occasioned fresh quarrels, to the great uneasiness of our landlady, for the people of the house were very good sort of people. She would often talk to my wife, and give her wholesome advice, but all to no purpose; which determined me to leave her. I again entered on board the *Britannia* privateer as carpenter's mate, without acquainting any body with my intention, and went down to *Greenhithe* where the ship lay, to work on board her. Before I had been there many days, to my great surprize down came my wife with *John Jones*! They staid on board all night, my wife crying bitterly to persuade me to come home again, promising an entire reformation in her conduct. I said I could not come back now, because I had entered myself; but she lamenting and behaving like a mad woman, I was persuaded to return home with her. To do this, I obtained leave of our lieutenant to go to *London*, to bring my tools down, when my wife prevailed on me to stay at home. I then went to work again in town, and my wife said if I would try her once more, by putting her in a shop, she would be very good. Then it was I took a house, at the corner of *Hare*

Court, Aldersgate Street, where, for some time, she managed very well, but soon returned to her old ways again. By our frequent quarrels the neighbours were at first inclined to think I used her ill, but had they then known how affairs were circumstanced, they would not have blamed me; for her temper grew so unaccountable, that she would frequently come after me, where ever I happened to be at work, or at the alehouse, and abuse me for nothing. When I came home at nights from my work, thinking to pass the evenings comfortably with her, she would constantly find some pretence to quarrel with me, and to render my life uneasy. One time, in particular, when I came home, she threw the pewter quart pot, she had been drinking out of, at my head; and then running out of the house, she, in the violence of her rage, dashed her elbow through the glass window of our shop, and then ran up to my master *Archer* with her bloody arm, crying out,——'See here what your rogue has done'—Thus she endeavoured to prejudice me in the minds of all my friends and acquaintance; when afterward she confessed to *Mr. Moses Owen*, a barber in *Old Street*, who compleated the cure of her arm, *that she did it herself purposely*.

"Another time, when I worked at *St. Mary Axe*, she, and one of her acquaintance, having been to *Billingsgate* to buy oysters for her shop, came to me to the *Crown* alehouse in *Camomile Street*, where I was then at dinner with my shopmates: there she wanted me to treat her with drink, which, as I observed her to be already in liquor, I refused, and would have gone back quietly to my work; she then snatched off my hat and wig to detain me, but finding that not to answer her intention, she abused me in a most vile manner, and with a small cod which she had with the oysters, beat me in a most ridiculous manner about my head and face; and, as all my brother journeymen may well remember, obliged me to go back to my labour bareheaded!

"One day, when my business carried me to the other end of the town for the whole day, my wife gave *Jones* notice of it, and quickly after I was gone dressed herself, shut up her shop, and went out with him to spend the day. He was that day dressed in a new suit of cloaths. At night when I came home, not being able to get into my house, I went to her mother's in *Whitechapel*, expecting to meet with her there. By the way as I was coming back, who should I see before me but my wife and *John Jones*! I followed them into an alehouse, where I quarrelled with them both, and in my

passion threw some beer in her face, on which she ran out to her mother's. I challenged *Jones* to fight me, but he would not. But meeting with him afterward, he then challenged me, for reporting the familiarity between him and my wife. On this we stripped, and had two or three blows; he fell against a table, and, as he says, broke two of his ribs, for which he took me up, but I was bailed out by my mistress. As my wife thought proper not to come nigh me, I lett the shop which she kept and lodged at my master's. She continued away about seven weeks, only calling upon me now and then to abuse me; and going home to my house to scold and threaten my lodgers, whom I had admitted upon her deserting me.

"At length she and her mother came together to me; her mother threatened, if I would not take my wife home again, to arrest me for her board; upon this I urged her bad treatment of me while she was at home, her neglect of her family affairs, and her scandalous attachment to this *John Jones*; and lastly, her voluntary elopement. However we entered into a treaty of pacification, in the course of which, she confessed her intimacy with *Jones*, and the terms on which it had subsisted. It seems their connexion began while I was on my cruize in the *Britannia* privateer; he promised to marry her if I should not return, and if I did, that he would still continue his kindness to her, and that in case he was to die, to leave her all his goods, and all his interest in the capital of a box-club, of which he was a member. This confession, though it was an odd one for me to hear, yet, as it was accompanied with what appeared to me sincere promises of amendment, I, in an evil hour, agreed to live with her once more. Accordingly I moved my bed into the two pair of stairs room, which one of my lodgers then quitted; this was about nine months before her unhappy death.

"When she came home again, though I believe she did not continue her acquaintance with *Jones*, yet her behaviour was otherwise so disorderly as rendered me very unhappy. For at times, when I came from work, expecting my breakfast, dinner, or supper, I frequently found the door locked, and so was drove to the necessity of eating my meals at an alehouse; a very disagreeable resource to a man, who, having a wife and a home, naturally expected the comforts resulting from such seeming advantages. But this was not all; she sometimes coming home in the interim, would seek me through all the public-houses in the neighbourhood, and when she found me, would strike me with whatever lay next her, raving at me for not

coming home, and denying her having been out. Once, in particular, having bought a piece of veal for my *Sunday's* dinner, when the morning came, truly she would not dine at home, she would go to her mother's, though I convinced her that the weather, being hot, would spoil the meat by the next day. I then went to my shoemaker to fetch me a pair of shoes, and they in friendship asked me to eat, as I found them at dinner; I was soon followed by my wife, who, finding me eating, was hardly withheld from stabbing me, first with a knife, and afterward with a fork.

"One *Sunday*, with a view to entertain her, I took her down to *Ilford*, that we might spend the day agreeably. We dined at the *White-Horse* there, and after dinner she drank very freely. When the reckoning came to be paid, she threw herself in a great passion with the landlord, on account of his charge; and I unluckily attempting to moderate matters between them, drew all her rage upon myself. She was so violent in her resentment, that she declared she would not go home with me, but would go with the first person who should ask her, or even with the next man who went by. Just at this time, a man dressed like an officer stopped in a chaise to drink; my wife soon entered into discourse with him, and asked him to let her ride home in his chaise: the man agreed, and away they drove together! This now was a measure she was not under any necessity of taking, because, not believing she would be able to walk home, I had offered her a place in the stage, which was quickly to pass the door.

"Thus abandoned by her, I walked home, and after waiting due time went to bed. About two o'clock in the morning I was roused by a knocking at the door: there was my wife so drunk as hardly to be able to stand, attended by her mother! The mother made what excuses she could for her daughter, to induce me to let her in, pleading, for the lateness of the hour, that, after the man had carried her a long way out of her road on the forest, he, at last, left her to walk home alone. I let her in, but her mother was obliged to stay and put her to bed, as she was entirely incapable of undressing herself.

"Though her intimacy with *Jones* was discontinued, yet she was not destitute of a gallant: one *William Charlton*, a man of my own business, was now her paramour; but as he was a married man, I had the additional mortification of having his wife come to scold me for suffering my wife to decoy away her husband! After having been with this *Charlton*, about a

fortnight before her death, she came home very drunk, and abused me sadly. She beat me over the shoulder with a pair of tongs; I wrested them from her, and, as I purpose to speak the truth, I will confess, that, in my passion, as she ran down stairs, I followed her and gave her a blow with them on the head. Upon this she ran directly to Mr. *Clark* the constable, the same who since apprehended me on the occasion of her death, to get me taken into custody. Mrs. *Clark* kindly wiped her forehead where the skin was broke, and advised her to go home peaceably, and make up the difference between us. This enraged her so that she gave Mrs. *Clark* many foul words, so that Mr. *Clark* came to expostulate with me, not on the blow I had given my wife, but on the ill language she had bestowed on his wife! Mr. *Clark* and I talked the matter over a tankard of beer, but I saw no more of my wife that night.

"There was also one *Stroud*, a *Smith*, in the number of her intimates, but I knew little of their concerns, more than what I understood from his wife, who came frequently to me, enquiring after him, and complaining greatly of my wife, for enticing him away from his family and his work.

"These few instances I have been able to recollect, may, in some measure, serve to give the reader of my unhappy tale, an idea of my wife's character and conduct, which I solemnly declare, I am not solicitous to expose, as the poor creature is dead, more than is absolutely needful, to shew what sort of person she was, and as it may tend to clear me in the opinion of the world. So quarrelsome was she by nature, that we never went out together, but she would find some occasion to abuse either me, some of the company, or even passengers in the street; if any one casually happened to brush her in passing, she would give them a blow in the face, and then call upon me to stand kick and cuff for her, while she having stirred up the mischief, ran away, unconcerned at my fate in the mob: and in our private disputes, I have been beat by her, her mother, and a servant girl of her mother's, all at one time. Nay, she has frequently threatened both to destroy herself, and to murder me. A threat, she has since very nearly accomplished.

"The night before this melancholy accident, I came home, to be sure not entirely sober: where not finding my wife, I went directly to her mother's, where I found her very drunk. It being night, her mother said it would not be proper to attempt taking her home in that condition; and therefore

advised me to lie there that night, while she and her girl would go and sleep at my lodging. We did so.

"Being now come to the unlucky day of my wife's death, I propose to be as particular in all my actions that day as recollection will enable me.

"In the morning, after my wife's mother came back, we all breakfasted together at her lodgings. After breakfast, I went to Mr. *Clark*, Timber Merchant, in *St. Mary Axe*, to solicit for some *India Company's* work: from whence I went to the *Mansion House* alehouse, and drank a pint of beer. I then intended to go to work at Mr. *Perry's* in *Noble-street*, but it being near dinner time, I stopped at the *Bell*, opposite his house, for another pint of beer, where meeting some acquaintance eating beef-stakes, I dined with them. As I was eating, in came my wife and her mother; she at first abused me for being at the alehouse, but they afterward, in great seeming good humour, drank with me, and as they wanted money, I gave my wife two shillings, and lent her mother a six and ninepenny piece, which I had just received in change for half a guinea, from the master of the public house. As the day was now far spent, and as I was pleased with the prospect of working for the *East-India Company*, I thought it not worth while to begin a day's work so late. I therefore went to *Smithfield*, to see how the horse-market went. From thence I went to *Warwick-lane*, to see for a young man, whom I had promised to get to work for the company also. I took him to Mr. *Clark*, in *St. Mary Axe*; and afterward went with him to two or three places more, the last place was the *Nagg's Head* in *Houndsditch*; and about half an hour after nine o'clock went home.

"When I came there, I went in at the back door, which is under the gateway; and which used to be only on a single latch, for the conveniency of my lodgers: I went up to my room door, but finding it fast, came down stairs again. There was then some disturbance over the way in *Aldersgate-street*, which I walked over to see the meaning of, imagining my wife might chance to be engaged in it. Not finding her in the croud, I returned, and went up stairs again; while I was on the stairs, I heard my wife cough, by which I knew she was at home. Finding my door still fast, I knocked and called again; still she would not answer. I then said "*Sally*, I know you are at home, and I desire you would open the door, if you will not I will burst it open." Nobody yet answering, I set my back against the door, and forced it

open. Upon this she jumped out of bed; I immediately began to undress me, by slipping off my coat and waistcoat, saying at the same time "*Sally*, what makes you use me so? you follow me wherever I go to abuse me, and then lock me out of my lodging; I never serve you so." On this she flew upon me, called me a scoundrel dog, said she supposed I had been with some of my whores; and so saying, tore my shirt down from the bosom: on this, I pushed her down. She then ran to the chimney corner, and snatched up several things, which I successively wrested from her: in the skuffle a table and a screen tumbled down. At length she struck me several blows with a hand-brush; and while I was struggling to get it from her, she cried out several times——"Indeed, indeed, I will do so no more."——When I got the brush from her, which I did with some difficulty, I gave her a blow with it, and then concluded she would be easy. She sat down on the floor by the cupboard door, tearing her shift from her back, which had been rent in the skirmish; I sat down on the opposite side of the bed, with my back towards her, preparing to go into it; and seeing her fling the remnants of her shift about in so mad a manner, I said, '*Sally*, you are a silly girl, why don't you be easy?' On that she suddenly rose up, and with something gave me a blow on the head, which struck me down. I fell on the bedstead with my head against the folding doors of it. I imagine she was then afraid she had killed me, for I heard her cry two or three times——*O save me, save me, save me!* How she went out of the window it is impossible for me to say, in the condition she left me in; but from her cries I supposed her gone that way; and in my consternation when I rose, I ran down one pair of stairs, where, not knowing how to behave, I went up again, and sat me down on the bed from whence I rose. In this position Mr. *Clark*, the constable, and the numbers who followed him, found me. He said, *Daniels you have stabbed your wife, and flung her out of the window.* I replied, *No, Mr. Clark, I have not, she threw herself out.* Mr. *Clark* took a candle, and examined all the room in search of blood, but found none; and lucky it was for me that neither of our noses happened to bleed in the fray, though mine was subject to bleed on any trifling occasion. He then went to the window, where he found a broken piece of a saucer, and asked what it was? I said, I did not know; but recollected afterward, that it was what I fed my squirrel in; though I know not how it came broke; it was whole that day.

"From thence I was taken to the *Compter*, and the public are already acquainted with the proceedings on my trial: when I was condemned for the supposed fact.

"I am informed that the next morning they found a pair of small watchmaker's plyers bloody in the window, which were then considered as a great proof of my guilt. These plyers were what I have mended my squirrel's chain with whenever he broke loose, which was sometimes the case. How they should be bloody, as God is my Saviour, I cannot answer; but as no wound was perceived on the body, they were not produced as evidence against me. However, when my wife was brought up from the street, it is said she was blooded, and that the bason was put in the window where these plyers were found. It is therefore possible that, in such confusion, a drop or two might accidentally be spilt upon them; more especially when we consider the tumult of a morning's exhibition of the dead body, for penny gratuities, by the unprincipled mother of it.

"In the course of my trial, the coroner laid some stress on the absence of *Charles Hilliard*, the lodger under my room; but Mr. *Hilliard* appeared however before the sessions were concluded, to save his recognizances: he then deposed before the judges, all he knew relative to the accident; which being materially the same with the evidence he gave at the coroner's inquest, and as I have no reason to wish it suppressed, I made it my business to request Mr. *Hilliard* to recollect the whole of it, which he was kind enough to give me in writing; and here it is.

"*Charles Hilliard* gave evidence before the coroner as follows.

"That Mrs. *Daniels* came into his apartment about eight o'clock in the evening to light her candle, and then went up to bed: that about ten Mr. *Daniels* came home, and knocked at the door, calling *Sally*, two or three times: that not being admitted, he broke the door open: that then he thought he heard a knocking to make good the breach, after which some words ensued between the parties, and blows followed: that he heard Mrs. *Daniels* ask forgiveness, saying, she would never do the like again: that *Daniels* should say—*Damn my breeches, what do you shut me out for? don't I pay my rent?* after which he heard a rumbling in the room, but did not

distinguish any thing more, to the best of his knowledge, till Mrs. *Daniels* fell from the window.

"I lived in Mr. *Daniel's* apartment but little time, in which I heard many quarrels and debates between them, which frequently happened by her aggravation and ill-treatment of him."

"I was sentenced to be executed on *Monday, September 21*; the coronation-day was to be the day following, which led some persons into a conjecture, that this august solemnity was the cause of the first respite, which made way for my pardon. This however was a mistaken opinion, for I owed the redemption from my hard fate entirely to the kind Christian offices of my friends who, from a persuasion of my innocence, applied to the worthy magistrates of *London*; from whom, the circumstances of my situation were represented to his Majesty. The gracious condescension of this best of Kings, in attending to the representations made to him on my account, will never be forgotten, while I enjoy that remnant of life I now owe to his goodness!

"I was condemned on the *Friday*; on the *Saturday* I was comforted with the news of a respite until the *Friday* following: I then heard of a farther respite, and was appointed to die with *Campbel* and *Gurnet*; before the execution of whom, I was again granted a longer time: and then my execution was to be forborn until farther orders. I received my pardon on *Thursday, October 28*, and was discharged from confinement *Sunday, November 1*.

"From the time of receiving sentence, to the time of my receiving a full pardon was six weeks close confinement in the cells of *Newgate*; where, by the terms of sentence, I was to be subsisted on bread and water only. I can however affirm with truth, that, conscious of my own integrity, not all the terrors of so ignominious a death, and the stamp of infamy attending it, ever could depress my spirits from the first to the last. I relied on the justice of God, who could penetrate beyond the ken of short-sighted man; and with the utmost reverence would I acknowledge the extension of his providence toward me, in protecting me in this life, from the consequences of premature judgment. I have been frail in common with the rest of mankind; and I have severely suffered. However, as my misfortunes in marriage

drove me into carelessness and excesses, which, together with them, have been the ruin of me; I hope that so remarkable a deliverance from the brink of the precipice of eternity, has called home my scattered thoughts, and will make me more sober and industrious than I have heretofore been. I now conclude this narrative with the most thankful acknowledgments to all whose kindness has been instrumental in my deliverance, from the awful fate from which I so hardly escaped."

The reader has now seen what the poor fellow had to offer for his own justification. It may not be improper just to add a few remarks, first, on the probabilities and improbabilities of the alledged fact, and then to compare the fair result of such examination with the tenor of the depositions on his trial; these will tend greatly to clear our conceptions with regard to the man.

The window of *Daniels's* room has two casements folding against each other, with garden pots before them. One of these casements only, used to be opened; the other being in general kept shut. These casements were each about sixteen or seventeen inches wide, and the window was about a yard and a quarter high. When this accident happened, one casement was open, the other shut, as usual; consequently the opening *then* through the window, was about sixteen or seventeen inches wide, and a yard and quarter high. Through this space a man was to thrust a woman nearly as strong as himself! If such a thing had been attempted, the following consequences must be incontestably allowed to ensue.

I. The woman would resist the attempt.

II. When persons struggle to avoid imminent danger, and are driven to despair, they are capable of a surprising degree of exertion, beyond their ordinary abilities.

III. This woman would therefore have continued in so narrow a gap a very considerable while before she could have been forced through, and would all that time have uttered cries, intreaties, and exclamations, too expressive of her situation to have been mistaken by the neighbours and spectators.

IV. Her resistance would have overturned the before-mentioned garden-pots, and would have shattered the glass of the casement that was shut, and

even forced open, or broke the casement itself, which obstructed her passage.

V. In breaking the glass of the window, her skin must have been greatly scratched and torn, and her limbs, naked as she was, have been otherwise greatly maimed and bruised.

VI. The man who undertook to force her out, as he must have been greatly agitated himself by his passions; as he was very closely employed, on no very easy job; and as the actions of the suffering party cannot be supposed to be merely defensive through the whole course of the fray; he must probably have been observed by some of the spectators at the instant of his effecting his purpose; and must positively have borne some very conspicuous marks of his helpmate's reciprocal assaults.

The two first of these propositions will be universally granted.

The third is contradicted by all the evidence on the trial, who unanimously agree, that the moment the woman was seen, she came through the window? and was only then heard to use expressions which *Daniels* accounts for better than any one else.

In reply to the fourth, the pots were not discomposed, nor the window broke, except one pane; and it does not appear that even that pane might not have been broke before.

In answer to the fifth; the body, by the evidence of the surgeon, did not appear to have received any other damage than the natural consequences of so great a fall.

As to the last; the man was not seen at the window at all: and as to any wounds or bruises sustained by him, the constable, when asked, whether he saw the blow on his head, which he affirmed to be given him by his wife? declared he did not. But he was not asked whether he looked for it; a question, it may be presumed, he would have answered in the negative. In such a situation, it is to be concluded, the poor fellow was little heard and less regarded, concerning whatever he might alledge in his own behalf. A man may be stunned by a blow that might not perhaps exhibit any remarkable appearance; and had it been seen, his account of it would have weighed but little.

It is not even probable, had he knocked this woman on the head first, that he could have sent the body through the window so compleatly, as either by fright, or design, she accomplished, herself. But that she came there living, is past doubt.

To conclude: The evidence against this unfortunate man, was only presumptive at most; and upon clear scrutiny is really presumptive of *nothing*: so that as he is discharged by royal authority, so has he also a just claim to an acquittal in the minds of all judicious and candid people.

FINIS.

*** END OF THE PROJECT GUTENBERG EBOOK THE AFFECTING
CASE OF THE UNFORTUNATE THOMAS DANIELS ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.